THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH

Item 29

CP (CAA) No. 22/Chd/Hry/2022
(2nd Motion)
Under Section 230-232, CA 2013

In the matter of:-

Adva Optical Networking India Pvt. Ltd. ...Transferor Company

And

Adva IT Solutions India Pvt. Ltd. …Transferee Company

Present: Mr. Shivam Narang, Advocate for the Petitioner Company.
Mr. Yogesh Putney, Senior Standing Counsel for the Income Tax Department.

The memo for submission of amalgamation order dated 19.03.2020 as passed by the Hon'ble NCLT Bench at Bengaluru filed by Diary No. 00481/01 dated 30.12.2022 and RD's report has been filed by Diary No. 00481/2 dated 02.05.2023 both are taken on record. Last opportunity is given to Income Tax Department for filing their report along with checklist and no objection from the General Public within three weeks with an advance copy to the counsel opposite. Learned counsel for the Petitioner is also directed to explain the impact of having the appointed date as on 01.01.2018 and whether the same acceptable within the provisions of justifying. List on 12.07.2023.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

June 13, 2023
PKA